

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979, read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

The Democratic Socialist Republic of
Sri Lanka.

COMPLAINANT

Vs.

Court of Appeal No:

Subasinghe Kankanamlage Ashoka

CA/HCC/269/24

Senadeera alias Mahatung

High Court of Kurunegala

Case No. HC 283/2021

ACCUSED

AND NOW BETWEEN

Subasinghe Kankanamlage Ashoka

Senadeera alais Mahatung

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Samantha Premachandra with Naveen**
Jayamanne for the Appellant.
Malik Azeez, SC for the Respondent.

ARGUED ON : **22/07/2026**

DECIDED ON : **21/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General for committing the following offence:

On or about the 16th of August 2019, at Hilogama, causing the death of Don Juwan Waduge Ranbanda alias Don Juwan Waduge Wijepala, thereby committing an offence punishable under Section 296 of the Penal Code.

The trial commenced before the High Court Judge of Kurunegala as the Appellant opted for a non-jury trial. The prosecution had led 11 witnesses and marked productions P1-08 and closed the case.

The Learned High Court Judge having been satisfied that the evidence presented by the prosecution warranted a case to answer, called for the defence and explained the rights of the accused. The Appellant had made a short dock statement and closed his case.

After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and sentenced him to death on 04/07/2024.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant had preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant had given his consent to argue this matter in his absence. At the hearing, the Appellant was connected via the Zoom platform from prison.

The background of the case *albeit* briefly is as follows:

PW1, Leelawathi, the wife of the deceased is the only eye witness to the incident in which the deceased was allegedly killed by the Appellant. The deceased and PW1 were employed as watchers of an estate owned by the younger brother of the Appellant. The couple had been working there for about 02 years at the time of the incident.

On the day of the incident, at about 8.00am the Appellant had come there under the influence of liquor and accused them for allowing an unknown person to remove his arrack can. During this time, the deceased had gone to the estate to pluck coconut. The Appellant had then threatened to kill them, and had proceeded to destroy their household items using a pole. Hearing this, the wife of the owner of the estate had come there after the departure of the Appellant.

At that time PW1, upon hearing the cries of the deceased, had seen the deceased fallen down with a bleeding injury on his neck. PW1 had witnessed the Appellant stabbing the deceased on his chest twice with a knife he had in his possession. The Appellant had also tried to attack PW1 as well. Upon witnessing this, PW1 had gone unconscious and she was taken to a nearby house. The deceased was taken to the hospital, but had succumbed to his injuries on the way.

PW2, Nisansala the wife of the owner of the estate, told the court that when she arrived at the scene of crime after coming to know that the Appellant had threatened PW1, she had seen the deceased fallen down while the Appellant was standing nearby. She had passed the message to her husband and had found a vehicle to transport the deceased to hospital.

PW3 Asanka Jayakody and PW4 Pushpakumara had arrived at the scene and PW3 had to struggle with the Appellant to grab the knife from him. Immediately, PW3 had called the Police Emergency Unit and helped PW6 to recover the knife.

PW5, CI Jayatilaka, had gone to the place of incident immediately after receiving the information. He had noticed blood marks at the scene. The Appellant was arrested on the same day at 16.15 hours.

PW6, IP Wijesinghe, had recovered the knife used by the Appellant as directed by PW3.

PW14 Nayakaratne, the JMO who held the post mortem of the deceased had stated that two stab injuries to the neck and the chest of the deceased and resulting haemorrhage and blood loss was the cause of death. According to the JMO, the injuries were fatal. He had expressed an opinion that the injuries could have been inflicted by the knife which had been marked as P3.

In the dock statement, the Appellant had said that he was attacked with a club when he was plucking coconut, and that he does not know whether the knife was broken into two or fallen down after it was broken.

The Appellant had raised the following grounds of appeal:

1. The evidence of PW1 contained numerous material contradictions, is not credible, lacked truthfulness and failed to satisfy the tests of probability and consistency.
2. The Trial Judge misdirected himself by not properly considering the plea of sudden fight and/or grave and sudden provocation.
3. The Learned High Court Judge had failed to evaluate the dock statement of the Appellant.
4. The Learned Trial Judge failed to appreciate that the duty of discharging the burden of proof is on the prosecution.

This case rests on the testimonies of eye witness and circumstantial evidence. PW1 is the key eye witness in relation to this incident. She had witnessed the Appellant stabbing the deceased twice on his chest area. The medical evidence is quite consistent with her evidence. Further, when PW1 shouted after seeing the incident, the Appellant had threatened to kill her as well. The defence had marked one contradiction upon the evidence given by

PW1. The Learned High Court Judge had very correctly considered the said contradiction and declared that the said contradiction is not strong enough to create a doubt regarding the prosecution's case. Prior to the incident, the Appellant had come to PW1's house, and had proceeded to threaten and destroy their household objects before he went out.

Eyewitness testimony plays a crucial role, as it remains an important type of criminal evidence in cases. In criminal cases such as this, judges are often tasked with assessing eyewitness testimony, which would also include the evaluation of whether the story of the witness supports the other established facts of the case. However, it is important to note that the complete accuracy and possibility of such a story cannot always be verified or falsified directly. In such situations, the judge would have to consider the reliability of the source of the statement.

Moreover, eyewitness testimony would be an extremely persuasive and convincing type of evidence presented in court. However, the accuracy of such testimony may be doubtful. Mistaken or inaccurate eyewitness evidence can potentially result in wrong convictions; innocent individuals could be sent to prison or death row for crimes they have not committed.

When evaluating the evidence of an eyewitness, the Court should take into account the demeanour of the witness, the probability of the account, and possible internal inconsistencies in the account, whether the account by the witness is in fact consistent with their own previous statements, whether the witness has had any bias against the accused or any group to which the accused is a part of, whether the available evidence at the scene of the crime supports the account, and whether the testimony of the other witnesses supports the witness's testimony. Such considerations would be of utmost importance as the burden of proof would lie on the prosecution in all criminal cases.

The Learned High Court Judge has very correctly and clearly discussed PW1's evidence in his judgment. Her evidence is further strengthened by the evidence given by PW2 and PW3. Upon being called by PW2, PW3 had arrived and seen the Appellant brandishing a knife. After much difficulty, he had grabbed the knife from the Appellant.

The court must seriously and carefully consider the previous as well as subsequent conduct of the accused before arriving at any conclusion relating to the guilt or innocence of the accused. This is due to a justified reason; only by extremely careful and vigilant analysis can the court arrive on its own logical inference. As such, the significance of conduct and importance of its evidentiary value cannot be overlooked or underestimated by the court in the determination of the conviction or acquittal of an Accused.

In this regard, Section 8 (1) and (2) of the Evidence Ordinance is very relevant to this case.

The Learned High Court Judge in his judgment had also considered the utterance made by the Appellant to PW1 when he came to her house in search of the deceased. Further, the Appellant had smashed the household items of PW1 before going out.

As the Learned High Court Judge had very correctly considered all the evidence presented by both parties, I conclude this ground has no merit.

In the second ground of appeal, the learned Counsel contended that the Trial Judge has misdirected himself by not properly considering the plea of sudden fight and/or grave and sudden provocation.

In this case, when the Appellant had first arrived at the deceased's house only PW1 was present. The deceased had gone to the estate. Therefore, no clash or tension had occurred between the deceased and the Appellant. When PW1 had seen the Appellant the second time, the deceased was lying fallen and the Appellant had stabbed the deceased's chest area twice. There

is not even an iota of evidence that transpires that there was a sudden fight between the deceased and the Appellant. As the learned State Counsel very correctly contended, the defence had failed to suggest this position to the prosecution witnesses. It was only raised in his dock statement.

In **Virsa Singh v State of Punjab** AIR (1958) SC 465 at 467 the court held that:

“No one has a licence to run around inflicting injuries that are sufficient to cause death in the ordinary course of nature and claim that they are not guilty of murder. If they inflict injuries of that kind, they must face consequences; and they can only escape if it can be shown, or reasonably deduced, that the injury was accidental or otherwise unintentional”

Considering the judgement cited above, the prosecution has placed cogent and uncontradicted evidence against the Appellant. The learned High Court Judge had considered this position in the judgement. Therefore, this ground also has no merit.

In the third ground of appeal, the learned Counsel for the Appellant contended that the Learned High Court Judge had failed to evaluate the dock statement of the Appellant.

The importance of evaluation and consideration of a dock statement an Accused had been discussed in a number of decided cases.

In the case of **Sarath v. Attorney General** [2006] 3 SLR 1 the court held that:

“There is no rule that particular item/evidence should be considered first in the judgment. There is no prescribed sequence in analysing evidence. The judgment analysed the entire evidence at the same time. Therefore, the fact of considering the dock statement at the beginning of the judgment would not make any difference as the prosecution evidence was considered at the same time.

One must bear in mind that when a dock statement is considered anywhere in the judgment, the judge who heard the evidence is aware of the prosecution case and would always consider the dock statement while considering the prosecution story. One cannot consider the dock statement in isolation”.

In the case of **Meegastennage Prince Gunawardena v. AG** (SC Appeal No. 42/2014 decided 7 November 2019) it was noted that:

“It is mandatory for the Judge to analyse the entire evidence before the Court and to find whether the ingredients are proved beyond reasonable doubt.”

This ground has no merit as the Learned High Court Judge had categorically dealt with the tenability of the defence of the Appellant in paragraph 35 of his judgment. Hence, it is very clear that the Learned High Court Judge had considered the dock statement of the Appellant in the correct manner in which a dock statement should be evaluated.

Finally, the learned Counsel for the Appellant contended that the prosecution has not proved the case beyond reasonable doubt.

In **The Queen v. K.A. Santin Singho 65 NLR 447** the court held that:

“It is fundamental that the burden is on the prosecution. Whether the evidence the prosecution relies on is direct or circumstantial, the burden is the same. This burden is not altered by the failure of the appellant to give evidence and explain the circumstances”.

In the case of **Officer - In - Charge, Police Station Udu Dumbara Vs. U.G. Sunil and Others** (SC/APPEAL/27/2019), decided on 05.06.2024 it was noted:

“It has been firmly established that, in a criminal case, that the charges against the Accused should be proved beyond reasonable doubt. Proof beyond a reasonable doubt generally means the Court must carefully

consider the entirety of admissible evidence to such scrutiny to see whether the ingredients of the charges are proved. If the Court is not satisfied the accused person must be acquitted.”

In this case PW1 is a key witness. Her evidence is clear, cogent and unambiguous. The court considering all other evidence presented by the prosecution, without any hesitation has relied on that evidence and convicted the Appellant as the prosecution has proved the case beyond reasonable doubt. Hence, this ground also has no merit.

As the prosecution had proven this case beyond a reasonable doubt, I affirm the conviction and the sentence imposed by the Learned High Court Judge of Kurunegala dated 04/07/2024 on the Appellant. Therefore, his appeal is dismissed.

The Registrar of this Court is directed to send this judgment to the High Court of Kurunegala along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL